

By grouping all “Defendants” together, the complaint fails to sufficiently plead promissory estoppel. Plaintiffs must plead each element of promissory estoppel specifically as to each individual defendant. The general allegation that “Defendants” promised to sell Plaintiffs the property is insufficient. (Complaint, ¶ 55.)

9th Cause of Action Restitution:

“Under the law of restitution, ‘[a]n individual is required to make restitution if the person receives a benefit at another’s expense.’” (*Id.* at 389.) A restitution claim requires that it would be unjust for the person receiving the benefit to retain it. (*Id.*)

Under this cause of action, Plaintiffs seeks restitution from Defendants for overpaid rent. (Complaint, ¶¶ 85-90.) Defendants argue this contradicts other allegations that Plaintiffs “increased their payments per year in excess of the Consumer Price Index amount...” (Complaint, fn. 3.) It is well established that “a party may plead in the alternative and may make inconsistent allegations.” (*Adams v. Paul* (1995) 11 Cal.4th 583, 593; see also *Crowley v. Katleman* (1994) 8 Cal.4th 666, 690–691.)

Demurrer as to “Alter Ego” and “Conspiracy” allegations is OVERRULED.

Demurrer as to the 1st and 9th Causes of Action OVERRULED.

Demurrer as to the 3rd and 4th Causes of Action SUSTAINED, with leave to amend.

Plaintiffs to file an amended complaint within 15 days.

Case Management Conference continued from 8.28.26 to 9.29.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601043	CALDERON, JR. VS BARNETT BARNETT BARNETT, LLC.	MOTION TO STRIKE COMPLAINT OF RUBEN CALDERON, JR. BY BARNETT BARNETT BARNETT, LLC, JADA BARNETT, ELENA CZARNOWSKI, ELENA CZARNOWSKI AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013, JADE BARNETT AS SUCCESSOR AND CO-TRUSTEE OF THE FAMILY TRUST OF THOMAS BARNETT AND LINDA BARNETT DATED JULY 12, 2013

Tentative Ruling: The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

Plaintiffs agreed to remove the Jonathan Swift quote. This leaves the sentence from the complaint’s “Summary of Action” that reads, “Simply put, the Defendants’ actions are motivated by nothing more than pure greed and avarice.” (Complaint, p. 3:10-11.)

“Irrelevant matter” includes allegations not essential to a claim or defense, allegations that are neither pertinent to nor supported by an otherwise sufficient claim or defense, or a demand for judgment requesting relief not supported by the allegations of the complaint. (CCP § 431.10(b).)

Plaintiffs state the sentence at issue “...explains Plaintiffs’ theory of why Defendants repudiated the [Purchase Agreement] after accepting Plaintiffs performance for over a dozen years.” Plaintiffs go on to argue this “motive” provides context.

Plaintiffs fail to identify what claim or cause of action the statement is essential to and there are no causes of action currently alleged that require malice or the like under which such a statement would be relevant.

Motion to Strike “Simply put, the Defendants’ actions are motivated by nothing more than pure greed and avarice.” Is GRANTED.

Motion to Strike the quote from Jonathan Swift “There is no vice which humankind carries to such wild extremes as that of avarice” is MOOT.

4.

CASE #	CASE NAME	HEARING NAME
PSC2004209	QUINTANA VS OXYGEN HOSPITALITY GROUP INC	MOTION TO LIFT BANKRUPTCY STAY AND RESUME SUPERIOR COURT PROCEEDINGS BY OXYGEN HOSPITALITY GROUP INC.

Tentative Ruling:

No opposition filed.

Defendant’s Motion to Lift Bankruptcy Stay and Resume Superior Court Proceedings GRANTED.

Case Management Conference scheduled for 9.10.26.

The parties are ordered to file with the Court ten days in advance of the CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in